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Essay Assignment #1: Integrity of the SCOTUS

The Supreme Court of the United States is a branch of government created by the constitution's framers to create checks and balances onto the other branches. Despite modern doubt into this branch's vulnerabilities, the way the framers intended the court to function has provided evidence to that "the court has maintained its integrity, and their recent rulings are consistent with taking a balanced approach to the Constitutional and legal matters that these assorted cases brought up" (Cawthon).

The integrity of the Supreme Court, otherwise referred to as SCOTUS, has been established as stated above as a check to the executive and legislative branch. SCOTUS has the power of legislative review, where they determine whether legislation or executive orders and actions are constitutional. In this position the nine justices have to use the upmost discretion to create just and legal decisions, which should be inherently apolitical. In reality however, this is not the case; since its creation the supreme court has been politicized, with justices being marked liberal or conservative by the public and the media. The respect of this higher court is further established by the nomination process for justices on the court, since it is a lifetime position that only ends once a justice dies or resigned, appointed by the president and approved by congress. This combined has led to a long history of the dueling two parties in U.S. politics to fight for a "majority" of ideologies in the court.

The court's integrity has been maintained in contemporary times, despite recent controversies regarding donations received by justices. Reviewing the court's 2024 decisions shows that outside the major politicized landmark cases placed in front of the court, many justices vote outside their "political bloc". Such as the case of United States V. Rahimi, where the liberal bloc and a majority of the conservative block deemed a law barring people with restraining orders to exercise their second amendment rights constitutional – or the landmark case of the FDA v. AHM regarding abortion pills where all nine justices determined there was no grounds to sue (Liptak). This shows justices going against their "bloc ideologies" by administering justice. Even with the current political happenings in the courts dissenting opinions are still held and published (keeping the majority in check), with dissenting opinions being frequent publications after legal proceedings.

The problem regarding the Supreme Court is that once justices are appointed by the executive and legislative branch, they are essentially free from regulation on their actions which is good for checks and balances but bad for accountability. Like in the recent controversies around Justice Clearance Thomas and the undisclosed "donations" he received for personal uses ranging from private school tuition to properties and vacations (Jones). However, the only problem with these payments is that he kept them undisclosed, which at the roots is a failure of bureaucracy not justice. But even this controversy has led to a new Code of Conduct for Justices to regulate the Justice's actions outside the court to "maintain and observe high standards of conduct in order to preserve the integrity and independence of the federal judiciary" (United States, SCOTUS). This is what the framers intended, democracy at work to regulate checks and balances into a just system, a system that is hard at work. Scholars at Harvard Law Review even created a document outlining how the supreme court could be better regulated, accounting for the

political pitfalls of regulating the highest court of the land. They envision a system where a large council of judges from lower courts being able to bring close accountability to the justices, with statues mandating resignation if the large pool of judges found the justices of ethical faults (Ayres and Re). The public yearns for judiciary reform, which is wholly possible if enough people take to direct action.

To Conclude, the United States judicial system and above all the Supreme Court is messy because just like in any other branch of society it is made up of humans, full of moral imperfections. The main reason why justice is not determined by one despot, but a jury of your peers or nine justices trying to determine what is correct. Regulation should be implemented to create more accountability in the court but that is par for the course in the workings of the government, in any case barring these regulations (by the justices) to preserve a flawed system that benefits them but not the public at large should be condemned.

Works Cited

Ayres, Ian, and Richard Re. "Enforceable Ethics for the Supreme Court." *Harvard Law Review*, 8 Aug. 2024, https://harvardlawreview.org/blog/2024/08/enforceable-ethics-for-the-supreme-court. Accessed 9 Dec. 2024.

Cawthon, Clifford. "Essay Assignment #1" *POLS&204 14233: Assignments*, Bellevue College, Canvas, Dec. 2024, https://bc.instructure.com/courses/2476661/assignments/34839571. Accessed 5 Dec. 2024.

Jones, Dustin. “What to know about the Supreme Court and ethical concerns.” *NPR*, 5 May 2024. https://www.npr.org/2023/05/05/1174057179/supreme-court-congress-ethical-hearing. Accessed 9 Dec. 2024.

Liptak, Adam, et al. “The Major Supreme Court Decisions in 2024.” *The New York Times*, 2 Jul. 2024, https://www.nytimes.com/interactive/2024/05/09/us/supreme-court-major-cases-2024.html. Accessed 9 Dec. 2024.

United States, Supreme Court of the United States, *Statement of the Court: Regarding Code of Conduct*. *Code of Conduct for Justices*, 13 Nov. 2023, https://www.supremecourt.gov/about/Code-of-Conduct-for-Justices_November_13_2023.pdf. Accessed 9 Dec. 2024.